

**Court No. - 39**

**Case :-** WRIT - C No. - 28118 of 2021

**Petitioner :-** Vikram Agarwal

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Nipun Singh

**Counsel for Respondent :-** C.S.C., Abhishek Srivastava

**Hon'ble Mrs. Sunita Agarwal, J.**

**Hon'ble Krishan Pahal, J.**

It is contended by the learned counsel for the petitioner that despite application moved by the petitioner and furnishing of indemnity bond, as per Clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code 2005, the permanent electricity connection has not been granted in the name of the petitioner who is living at the first floor of the house-in-question. A temporary electricity connection has been given under the directions issued by this Court vide judgment and order dated 17.05.2017 passed in Writ C No.21562 of 2017, appended at page '58' of the paper book, which is renewable after every six months.

In order to get a permanent electricity connection by complying with the conditions of the U.P. Electricity Supply code, 2005 the petitioner has again moved application which remains pending till date.

Sri Abhishek Srivastava, learned Advocate has received notices on behalf of the respondents no.2 & 3. He prays for and is granted ten days' time to seek instructions and place the written instructions before the Court pointing out the difficulty being faced by the Department in granting permanent electricity connection to the petitioner.

The said written instructions shall be filed keeping in view the provisions of Clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code 2005.

Let this matter be posted as fresh on 30.11.2021.

**Order Date :-** 17.11.2021

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**Court No. - 29**

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**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Nipun Singh

**Counsel for Respondent :-** C.S.C.,Abhishek Srivastava

**Hon'ble Pritinker Diwaker,J.**

**Hon'ble Ashutosh Srivastava,J.**

Sri Nipun Singh, counsel for the petitioner and Sri Abhishek Srivastava, counsel for respondents 2 and 3.

The grievance of the petitioner is that the respondents 2 and 3 be directed to supply permanent electricity connection in view of clause 4.4 read with Annexure-4.2 of the Electricity Supply Code, 2005.

Counsel appearing for respondents 2 and 3, on instructions, submits that the petitioner has already been supplied Prepaid Electricity Meter, which is permanent in nature. However, he is at liberty to move an appropriate application before respondents 2 and 3 indicating the period of requirement of the meter.

Since the electricity meter has already been installed at the site of the petitioner, relief claimed in the writ petition has been granted and, therefore, no further orders are required to be passed.

However, in the eventuality of completing all the formalities and moving an application by the petitioner, we expect the authorities to respond accordingly.

The petition is, accordingly, disposed of.

**Order Date :-** 20.12.2021

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